



Government of Goa
Directorate of Fire & Emergency Services
 St. Inez, Panaji
 Goa - 403 001 - India



File No.: DFES/CONF/94-XVI/2025-26/13

Date: 29.08.2025

IN THE MATTER OF RIGHT TO INFORMATION ACT, 2005.

Appeal No. 02/2025

Mr. Giridharlal M. Gangani,
 Galaxy Building,
 Dr. A. B. Road, Opp. Hotel Nova Goa,
 Panaji, Goa-403001

Appellant

V/s

State Public Information Officer,
 North Zone,
 Directorate of Fire & Emergency Services,
 St. Inez, Panaji, Goa.

Respondent

ORDER

1. The brief facts leading to the present Appeal are that the Appellant Mr. Giridharlal M. Gangani, resident of Galaxy Building, Dr. A.B. Road, opp. Hotel Nova, Panaji, Goa herein by his application dated 04.03.2025 sought certain information from the Respondent Public Information Officer (PIO) of the Directorate of Fire & Emergency Services, Panaji under the Right to Information Act, 2005.
2. The said information was sought by the appellant in exercise of his right under Sub-Section (1) of Section 6 of RTI Act 2005.
3. It is the contention of the appellant that no complete information was received by him within the stipulated time of 30 days and as such deeming the same as rejection, the appellant filed 1st Appeal on 16.04.2025 before the Respondent No. 2. The Director, Directorate of Fire & Emergency Services being the first appellate authority in terms of section 19(1) of RTI Act, thereby seeking relief of directions to PIO to furnish the information, as also seeking penalty for not giving information within time.
4. Notices were issued to both the parties. Appellant appeared in person. Respondent PIO, Shri Shripad Gawas was also present who filed the reply on 27.05.2025 along with enclosures. The copy of the same was furnished to the Appellant.
5. During the hearing, the Appellate Authority orally directed the PIO to furnish the remaining information to the Appellant.
6. The PIO furnished the required information on 12.05.2025.
7. Arguments were advanced by the parties.

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8. I have scrutinized the record available in the file and considered the submission of parties.

Only part of the information has been provided on 13.03.2025. It is evident that the PIO was in possession of the information sought by the Appellant. If the information could be provided in part to the complainant by the appellant, I failed to understand as to why the complete information could not be provided to the complainant on 13.03.2025 itself. Therefore, the conduct and the attitude of the Respondent does not appear to be bonafide. There was inordinate and unexplained delay of 38 days in furnishing the information to the Appellant.

The PIO has furnished all the remaining information to the appellant on 12.05.2025.

The PIO is further directed to avoid such lapses in future in order to fulfill the spirit of the Right to Information Act.

If the Appellant is not satisfied with the First Appellate Authority he may prefer Second Appeal before the State Information Commission, Karnat Tower, Patto Plaza, Patto Centre, Panaji Goa.


(NITIN V. RAKER)
DIRECTOR/

FIRST APPELLATE AUTHORITY
FIRE & EMERGENCY SERVICES

Copy to,

1. Mr. Giridharlal M. Gangani, Galaxy Building, Dr. A.B. Road, Opp. Hotel Nova Goa, Panaji, Goa-403001.
2. The Public Information Officer, North Zone, Panaji, Directorate of Fire & Emergency Services, Panaji, Goa.